

No. _____

IN THE SUPREME COURT OF THE UNITED STATES

MELVIN MARTINEZ-GUARDADO,
Applicant,

v.

HIROMICHI KOBAYASHI, IN HIS OFFICIAL CAPACITY AS THE WARDEN
FEDERAL DETENTION CENTER HOUSTON; THOMAS M. O'CONNOR,
TRUSTEE, IN HIS OFFICIAL CAPACITY AS A UNITED STATES MARSHAL FOR
THE SOUTHERN DISTRICT OF TEXAS; MARCO RUBIO SECRETARY, U.S.
DEPARTMENT OF STATE; PAMELA BONDI, U.S. ATTORNEY GENERAL,
Respondents.

EMERGENCY APPLICATION FOR STAY OF
EXTRADITION/SURRENDER PENDING THE DISPOSITION
OF HIS APPEAL CURRENTLY PENDING IN THE FIFTH
CIRCUIT AND THE FILING AND DISPOSITION OF A
PETITION FOR WRIT OF CERTIORARI, AND REQUEST
FOR IMMEDIATE ADMINISTRATIVE STAY

PHILIP G. GALLAGHER
Federal Public Defender
Southern District of Texas

By /s/ Jorge Aristotelidis
GEORGE W. "JORGE" ARISTOTELIDIS
Assistant Federal Public Defender
Attorney in Charge
Texas State Bar ID No. 00783557
Southern District of Texas No. 1443
Attorneys for Defendant
440 Louisiana, Suite 1350
Houston, Texas 77002
Telephone: (713) 718-4600

PARTIES TO THE PROCEEDING AND RELATED PROCEEDINGS

This application arises from the United States Court of Appeals for the Fifth Circuit. Applicant is Melvin Martinez-Guardado, a Legal Permanent Resident of the United States of America. Respondents are Hiromichi Kobayashi, in his official capacity as the Warden of the Federal Detention Center in Houston, Texas; Thomas M. O'Connor, Trustee, in his Official Capacity as United States Marshal for the Southern District of Texas; Marco Rubio, Secretary for the United States Department of State, and Pamela Bondi, United States Attorney General.

The proceedings below:

1. *Melvin Martinez-Guardado v. Hiromichi Kobayashi, et. al.*, Cause No. 4:25-CV-3305 (S.D. Tex. August 19, 2025).
2. *Melvin Martinez-Guardado v. Hiromichi Kobayashi, et. al.*, Cause No. 25-20355 (5th Cir. 2025) (unpublished order).

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TO THE HONORABLE SAMUEL A. ALITO, JR., ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES AND CIRCUIT JUSTICE FOR THE FIFTH CIRCUIT:

Pursuant to Rule 23 of the Rules of this Court and 28 U.S.C. §§ 1651, 2101(f), Applicant Melvin Martinez-Guardado respectfully applies for a stay of his extradition/surrender to Honduras, following the Fifth Circuit's August 30, 2025 unpublished order (App.1) denying his motions for a stay of his extradition/surrender during the pendency of his appeal to that court of the district court's order denying him habeas relief. Mr. Martinez-Guardado requests a stay of extradition/surrender pending (1) the disposition of his appeal currently pending in the Fifth Circuit (No. 25-20355), and (2) the filing and disposition of a subsequent petition to this Court for a writ of certiorari.

Absent a stay from this Court, there is a substantial risk that Mr. Martinez-Guardado will be surrendered to extradition and sent to Honduras, where he will likely be tortured.

INTRODUCTION

In his habeas challenge, Mr. Martinez-Guardado provided well-documented and unchallenged expert testimony—which includes reports by the Department of State (DOS) condemning the Honduran prison system as fraught with violence and corruption—in support of the conclusion that it is more likely than not that Mr. Martinez-Guardado will suffer torture if extradited to the Republic of Honduras. His case presents a circuit split concerning a district court's jurisdiction over claims for relief under the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT), *adopted* Dec. 10, 1984, S. Treaty Doc. No. 20, 100th Cong., 2d Sess. (1988), 1465 U.N.T.S.

85, by persons facing their surrender, following their order of extradition.¹ It also calls for this Court's guidance as to the breadth of the "rule of non-inquiry," which currently prevents any meaningful inquiry as to the government's conclusory claim to understand its obligations to ensure extraditees are not tortured in violation of CAT. Lastly, it presents an opportunity for this Court to revisit its strongly worded concurrence in *Munaf v. Geren*, where judges of this Court opened the door to a Due Process-based challenge to prevent extradition in cases where the probability of torture is well documented, even in cases where the government fails to acknowledge it.

Mr. Martinez-Guardado requests a stay of his extradition/surrender to Honduras to allow him the opportunity to receive a decision on the merits of his appeal to the Fifth Circuit and, if necessary, to file a petition for writ of certiorari to present those questions. Without a stay, Mr. Martinez-Guardado can be extradited any day now, and consequently lose the opportunity to challenge his surrender.

OPINIONS BELOW

The Fifth Circuit's unpublished order (App.1) is reported at *Melvin Martinez-Guardado v. Hiromichi Kobayashi, et. al.*, Cause No. 25-20355 (5th Cir. 2025). The opinion of the district court (App.2) is unreported.

JURISDICTION

Mr. Martinez-Guardado filed a notice of appeal with the Fifth Circuit on August 19, 2025. He then filed motions both for a stay of his pending surrender to Honduras and for a

¹ The same and similar issues are presented by the petition filed in *Kapoor v. Demarco*, No. 24-1288, which is currently pending before this Court.

temporary administrative stay, the latter of which was granted by the Fifth Circuit on August 26, 2025. On August 30, 2025, the Fifth Circuit issued an “Unpublished Order” denying a temporary stay pending appeal. Mr. Martinez-Guardado did not move for a rehearing *en banc*. This Court has authority to stay Mr. Martinez-Guardado’s surrender to Honduras pending the Fifth Circuit’s determination of the merits of the appeal, and this Court’s consideration of a subsequent petition for a writ of certiorari (if necessary). 28 U.S.C. §§ 1651(a), 2101(f).

STATEMENT OF THE CASE

A. Legal Background

Under 18 U.S.C. § 3184, when the government files a complaint charging a person in the United States with a crime allegedly committed in a foreign state covered by an extradition treaty, a judge may issue an arrest warrant for the person charged. If the judge determines that the government’s “evidence of criminality” is “sufficient to sustain the charge under the provisions of the proper treaty,” the judge “shall certify...to the Secretary of State” that the Secretary may issue a surrender warrant. *Id.* That certification is not subject to direct appeal. *In re Metzger*, 46 U.S. (5 How.) 176, 191 (1847). Additionally, under the “rule of non-contradiction,” the extraditee is prohibited from presenting evidence in the proceeding that contradicts the evidence offered by the requesting foreign country. *Noeller v. Wojdylo*, 922 F.3d 797, 807 (7th Cir. 2019). Upon a certification of extraditability, the Secretary of State makes the final decision whether to surrender the accused to the foreign state. 18 U.S.C. § 3186.

Because the certification proceedings are circumscribed, “[a] petition for habeas

corpus is the only means available to challenge an international extradition order.” 15B Charles Alan Wright et al., *Federal Practice and Procedure* § 3918.3 & n.20 (2d ed. 2025 update); *see also Vitkus v. Blinken*, 79 F.4th 352, 362 (4th Cir. 2023) (“Because a certification order is not a final appealable order under 28 U.S.C. § 1291 an extraditee * * * can only challenge such an order in federal court by pursuing habeas corpus relief under 28 U.S.C. § 2241.”).

In 1984, the United Nations General Assembly adopted CAT. CAT Article 3 provides that no party state shall “extradite a person to another State where there are substantial grounds for believing that he would be in danger of being subjected to torture.” Art. 3, 1465 U.N.T.S. 114. Article 3 directs the “competent authorities,” in making that determination, to “take into account all relevant considerations including, where applicable, the existence in the State concerned of a consistent pattern of gross, flagrant or mass violations of human rights.” *Id.*

CAT is a non-self-executing treaty. Thus, Congress—following ratification of CAT—enacted the Foreign Affairs Reform and Restructuring Act of 1998 (FARRA), which states, in relevant part:

It shall be the policy of the United States not to expel, extradite, or otherwise effect the involuntary return of any person to a country in which there are substantial grounds for believing the person would be in danger of being subjected to torture, regardless of whether the person is physically present in the United States.

Pub. L. No. 105-277, Div. G, § 2242(a), 112 Stat. 2681-822 (codified as note to 8 U.S.C. § 1231).

Under FARRA, the State Department promulgated regulations outlining its CAT

obligations when evaluating torture/humanitarian-based habeas challenges (torture claims) of an extraditee. Among other things, those regulations require the government to consider “whether a person facing extradition from the U.S. ‘is more likely than not’ to be tortured in the State requesting extradition.” 22 C.F.R. § 95.2(b). The regulations further provide that “appropriate policy and legal offices [shall] review and analyze information relevant to the case in preparing a recommendation to the Secretary as to whether or not to sign the surrender warrant.” *Id.* § 95.3(a). But the determination resulting from that opaque process is, at least according to the regulations, a “matter[] of executive discretion not subject to judicial review.” *Id.* § 95.4.

Congress addressed the judicial review of claims under CAT in the immigration context when it enacted 8 U.S.C. § 1252(a)(4) as part of the REAL ID Act of 2005 (REAL ID ACT), Pub. L. No. 109-13, Div. B, § 106(a)(1)(B), 119 Stat. 302, 310. That provision—in a section titled “Judicial review of orders of removal,” and appearing in a subchapter titled “Immigration”—states:

Notwithstanding any other provision of law (statutory or nonstatutory), including section 2241 of title 28, or any other habeas corpus provision, and sections 1361 and 1651 of such title, a petition for review filed with an appropriate court of appeals in accordance with this section shall be the sole and exclusive means for judicial review of any cause or claim under the United Nations Convention Against Torture and Other Forms of Cruel, Inhuman, or Degrading Treatment or Punishment, except as provided in subsection (e).

8 U.S.C. § 1252(a)(4).

B. Proceedings Below

Mr. Martinez-Guardado is a Legal Permanent Resident (LPR) of the United States,

who resides in Houston, Texas, and has been detained in connection with his extradition proceedings since September of 2024. On September 24, 2024, the government filed a complaint in the Galveston Division of the United States District Court for the Southern District of Texas requesting extradition of Mr. Martinez-Guardado under 18 U.S.C. § 3184. *See* Case No. 3:24-mj-00006, Dkt. 1. In its complaint, the government stated that Honduras sought to prosecute Mr. Martinez-Guardado for homicide. On October 17, 2024, the government filed a memorandum asking the magistrate judge to find Mr. Martinez-Guardado eligible for extradition. Case No. 3:24-mj-00006, Dkt. 18. It argued it had satisfied the five requirements for extradition under 18 U.S.C. § 3184. *See id.* Mr. Martinez-Guardado filed a response in opposition. Case No. 3:24-mj-00006, Dkt. 21. He challenged the third prong of the extradition test, arguing the extradition treaty was no longer in force because Honduras had notified the United States in August 2024 that it had terminated its obligations under the treaty *See id.* On November 1, 2024, the court held a final extradition hearing. It issued a written opinion on November 19, 2024, finding the government had satisfied all requirements for extradition. Case No. 3:24-mj-00006, Dkt. 25. It concluded the extradition treaty was still in force because Article XIV of the treaty required six months' notice for termination, making Honduras's termination of the treaty not effective until March 1, 2025. Case No. 3:24-mj-00006, Dkt. 25, Exhibit A at 5-6 ² After the court issued its extradition decision, it sent a record of the proceedings to the Department of State ("DOS"), so the Secretary of State could make its surrender decision.

² The extradition treaty has been extended by agreement of the two countries and is now set to expire on February 7, 2026.

a. The First Habeas Petition.

On December 6, 2024, Mr. Martinez-Guardado filed a habeas petition under 18 U.S.C. § 2241. Case No. 4:24-cv-4862, Dkt. 1. His petition challenged any decision by the Secretary of State to surrender him to Honduras. See *id.* The petition referenced the opinion from and *curriculum vitae* for consulting expert Abram Huyser-Honig, attached as exhibits to the petition.

On April 3, 2025, the district court issued its decision on the initial habeas petition. Case No. 4:24-cv-4862, Dkt. 9. It dismissed with prejudice any challenge to the judicial extradition decision but dismissed without prejudice the habeas claims challenging the Secretary of State's extradition decision, reasoning that this issue was not yet ripe because the Secretary had not yet decided whether to surrender Mr. Martinez-Guardado. See *id.* In tandem with the habeas petition, Mr. Martinez-Guardado submitted a letter-request directly to the Department of State, asking that it forgo his surrender to Honduras because it was more likely than not that he will be tortured.

On July 14, 2025, the Secretary authorized Mr. Martinez-Guardado's surrender to Honduras. The DOS sent Mr. Martinez-Guardado a letter notifying him of the Secretary's Torture Decision. App.27. It states: "the decision to surrender Mr. Martinez-Guardado to Honduras complies with the United States' obligations under the [CAT] and its implementing statute and regulations." App.28. The letter does not provide any facts or evidence supporting the department's claim.

b. The Second Habeas Petition.

On July 17, 2025, Mr. Martinez-Guardado filed his second habeas petition under 18 U.S.C. § 2241. Case No. 4:25-cv-3305, Dkt. 1 (habeas petition), Dkt. 7 (amended habeas petition) App.29. That petition again challenged the Secretary's surrender decision. Mr. Martinez-Guardado argued the district court had jurisdiction to review the Secretary's decision under the Suspension Clause, U.S. Const. art. 1, § 9 cl. 2. He also argued his surrender to Honduras would violate the CAT, its implementing statutes and regulations, and his due process rights, because he would likely be subjected to torture in a Honduran prison if surrendered to that country. See *id.* In support of his arguments, he again submitted his expert's CV and affidavit opining that it was more likely than not Mr. Martinez-Guardado would be tortured if surrender to Honduras. App.64-87. The government filed a response in opposition. App.88. It argued the district court had no jurisdiction to evaluate the Secretary's surrender decision, including its Torture Decision, and that these considerations were exclusively within the purview of the executive branch. See *id.* On August 19, 2025, the district court dismissed Mr. Martinez-Guardado's habeas claims with prejudice. App.2. The court did not squarely decide whether it had jurisdiction to review Mr. Martinez-Guardado's CAT and due process claims. App.15-16. It held that, even if jurisdiction existed, the "rule of non-inquiry" prohibited the court from reviewing the Secretary's factual determinations as to whether Mr. Martinez-Guardado faced a risk of torture in Honduras, and Mr. Martinez-Guardado thus could not prevail on his claims. App.17-18. The court temporarily stayed Mr. Martinez-Guardado's surrender for seven days, "to allow Petitioner time to file a Notice of Appeal and any relevant motions" in the

Fifth Circuit. App.26. On August 20, 2025, Mr. Martinez-Guardado filed a timely notice of appeal. Case No. 4:25-cv-3305, Dkt. 20. In tandem, Mr. Martinez-Guardado also filed a motion for stay, and for a temporary/administrative stay of his surrender pending the appellate court's resolution. The Court granted a temporary administrative stay pending further orders. App.122. In a subsequent order denying a stay pending appeal, the Fifth Circuit decided that "[j]udicial review" of the district court's order denying habeas relief "is precluded by the 'non-inquiry rule.'" See "Unpublished Order," (App.1) (citing *Munaf v. Geren*, 553 U.S. 674, 700 (2008); *Escobedo v. United States*, 623 F.2d 1098, 1107 (5th Cir. 1980)). It concluded, without more, that "[t]he federal courts, including this court, are therefore barred from granting relief."

A stay of the of Mr. Martinez-Guardado's extradition/surrender to Honduras is warranted for the following reasons:

First, there is a reasonable probability that, if the Fifth Circuit affirms the district court's order, this Court would grant Mr. Martinez-Guardado's forthcoming petition for a writ of certiorari. The circuits that have considered habeas review of an extradition order are split on the statutory jurisdiction question —the Fifth Circuit's unpublished, two-sentence order is silent on the question of jurisdiction. Additionally, there is also much disagreement on the question of "non-inquiry," that is, how much of an explanation does the Department of State have to give to assuage or prevent, when possible, concerns about torture in the receiving country in extradition cases. The questions are important and recurring.

Second, there is fair prospect that this Court will reverse the Fifth Circuit if it affirms the district court's order. Mr. Martinez-Guardado has submitted well-documented

evidence, supported in part from reports prepared by the DOS that condemn the Honduran prison system, evidence that has not been, in any way, contested or rebutted by the government.

Third, a stay is necessary to prevent irreparable harm to Mr. Martinez-Guardado. Without a stay, Mr. Martinez-Guardado can now be surrendered at any time. If so, there is a substantial risk that he will be extradited to the Honduran prison system, where Mr. Martinez-Guardado is likely to be tortured, before the Fifth Circuit and this Court have had the opportunity to review the merits of his case. Finally, the balance of the equities favors a stay of the Fifth Circuit's order and mandate.

The irreversible harm that would befall Mr. Martinez-Guardado without a stay well-exceeds the "harm" to respondents, the time it would take to surrender Mr. Martinez-Guardado to Honduras. The equities favor a stay.

REASONS FOR GRANTING THE STAY

Under 28 U.S.C. § 2101(f), this Court may stay proceedings pending the filing and disposition of a petition for a writ of certiorari. To obtain such a stay, an applicant must show “(1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3) a likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). “In close cases the Circuit Justice or the Court will balance the equities and weigh the relative harms to the applicant and to the respondent.” *Ibid.* Mr. Martinez-Guardado satisfies those requirements.

First, there is at least a reasonable probability that, if the Fifth Circuit affirms the district court's order, this Court will grant certiorari. Given the brevity of the Fifth Circuit's unpublished order, Mr. Martinez-Guardado's forthcoming petition will present four questions: (1) whether Section 1252(a)(4) bars habeas review of CAT claims; (2) if so, whether that removal of habeas jurisdiction violates the Suspension Clause; if not, (3) whether Mr. Martinez-Guardado has a Due Process right for relief from surrender, as envisioned by this Court's powerful concurrence in *Munaf v. Geren*, and lastly, (4) to what extent does the rule of non-inquiry prevent a district court to require the DOS to provide evidence that it is not more likely than not that an extraditee in Mr. Martinez-Guardado's shoes will be tortured if extradited to a foreign nation. Those are important questions on which the Courts of Appeals are clearly split.

Second, if the Fifth Circuit affirms the district court's order, there is at least a fair prospect of reversal. As expressed, Mr. Martinez-Guardado has submitted expert testimony opining that it is more likely than not that he will be tortured if surrendered to the Honduran prison system. Compellingly, some of the data relied on by the expert include the Department of State's very own reports that condemn the Honduran prison system. App.71-73; 75-76. Other than a simple statement claiming to be aware of its obligations under CAT, the DOS has not responded to these allegations, much less rebutted them. This situation falls squarely into the scenario envisioned by Justice Souter in *Munaf*, who, writing for the concurring judges, assertively discussed a Due Process right to prevent extradition in cases where the probability of torture is well documented, even in cases where the government fails to acknowledge it.

Third, the balance of harms and equities weighs heavily in Mr. Martinez-Guardado's favor. Without a stay, there is a high likelihood that the government will surrender Mr. Martinez-Guardado any day now, and before he receives a decision on his appeal to the Fifth Circuit and his petition for certiorari is submitted and considered by this Court, and that if surrendered, Mr. Martinez-Guardado is likely to be tortured upon his incarceration in Honduras. The harms to the government from a stay are miniscule by comparison.

I. There Is a Reasonable Probability That, If the Fifth Circuit Affirms the District Court's Order, This Court Will Grant Certiorari

A. The Fifth Circuit's Decision Deepens an Unresolved Circuit Split

Among the reasons this Court grants writs of certiorari is that a Court of Appeals

“has entered a decision in conflict with the decision of another United States court of appeals on the same important matter.” Sup. Ct. R. 10(a); see also Stephen M. Shapiro et al., *Supreme Court Practice* § 4.4 (11th ed. 2019) (*Supreme Court Practice*) (“The Supreme Court often * * * will grant certiorari where the decision of a federal court of appeals * * * is in direct conflict with a decision of another court of appeals on the same matter of federal law.” (emphasis omitted)); *Thompson v. Keohane*, 516 U.S. 99, 106 (1995) (acknowledging “grant[] [of] certiorari to end the division of authority” on habeas question “[b]ecause uniformity among federal courts is important on questions of this order”).

There is a clear circuit split on the question whether the federal courts possess habeas jurisdiction over CAT claims asserted by extraditees. The Fifth Circuit’s two-sentence unpublished order omits any mention of jurisdiction, the Suspension Clause and Mr. Martinez-Guardado’s reliance on *Munaf*’s concurrence for relief from torture under the Due Process Clause, instead citing only the “rule of non-disclosure” as its ground to deny relief. One could read the Fifth Circuit’s order as impliedly accepting its jurisdiction to entertain torture claims like Mr. Martinez Guardado’s, and that the district court properly denied relief because it could not require the DOS to provide evidence to show that is it not more likely than not that Mr. Martinez-Guardado will be tortured if surrendered to Honduras. Essentially, the Fifth Circuit’s order could be read as establishing an oxymoron; a district court’s jurisdiction to entertain torture claims, but an inability to ensure that the DOS complies with its duty to prevent an extraditee’s torture abroad. If the Fifth Circuit affirms the district court’s order on the same basis, then this Court’s review would certainly

be warranted.

The Second (*Kapoor v. DeMarco*, 132 F.4th 595 (2nd Cir. 2024), Fourth (*Mironescu v Costner*, 480 F.3d 664 (4th Cir. 2007) and D.C. (*Omar v. McHugh*, 646 F.3d 13 (D.C. Cir. 2011)) Circuits have held that federal courts are prohibited from considering torture claims in extradition proceedings. The following is a summary of the holdings in each of the circuits that recognize a district court's jurisdiction to consider torture claims.

The Ninth Circuit has held that Congress has not prohibited habeas jurisdiction over CAT/FARRAR Act claims raised by extraditees, explaining that "FARRA lacks sufficient clarity to survive the 'particularly clear statement' requirement" articulated in *INS v. St. Cyr*, 533 U.S. 289 (2001), adding that Section 1252(a)(4) is thus "construed as being confined to addressing final orders of removal, without affecting federal habeas jurisdiction." *Trinidad y Garcia v. Thomas*, 683 F.3d 952, 956 (9th Cir. 2012) (en banc). Accordingly, in the Ninth Circuit, an extraditee may obtain habeas review of the Secretary of State's determination that their surrender to the requesting country will not violate CAT and its implementing regulations. *Trinidad y Garcia* explains that, "[i]n addition to possessing jurisdiction under § 2241, the district court also had jurisdiction under the Constitution," elaborating that "[a]lthough the Constitution itself does not expressly grant federal habeas jurisdiction, it preserves the writ through the Suspension Clause." *Trinidad y Garcia* at 960 (citing U.S. Const. art. I, § 9, cl. 2; *Boumediene v. Bush*, 553 U.S. 723, 743-46 (2008); *Ex Parte Bollman*, 8 U.S. 75, 4 Cranch 75, 94-95 (1807)). "The Suspension Clause was designed to protect access to the writ of habeas corpus during those cycles of executive and legislative encroachment upon it." *Id.* (citing *Boumediene*, 553 U.S. at 745.).

The *en banc* court concluded that, “e]ven if we adopted the government's position that Congress foreclosed Trinidad y Garcia's statutory habeas remedies, his resort to federal habeas corpus relief to challenge the legality of his detention would be preserved under the Constitution.” *Id.*

The Seventh Circuit in *Venckiene v. United States*, 929 F.3d 843, 865 (7th Cir. 2019) held that under certain circumstances, a district court has jurisdiction to entertain due process-based torture claims in extradition proceedings. *Venckiene* also recognized the Fourth and Fifth Circuits as possessing jurisdiction to entertain their habeas extradition challenges. As a basis for its ruling, the court in *Venckiene* relied on *In re Burt*, 737 F.2d 1477, 1487 (7th Cir. 1984), explaining:

Generally, the Secretary of State's extradition decision is not subject to judicial review. This circuit and others, however, have recognized an exception through which courts can, at least in theory, consider claims that “the substantive conduct of the United States in undertaking its decision to extradite ... violates constitutional rights.” *Burt*, 737 F.2d at 1484; *see also Martin v. Warden*, 993 F.2d 824, 829 (11th Cir. 1993) (recognizing that constitutional rights are superior to treaty obligations, but finding no violation of constitutional rights in long-delayed extradition request) *Plaster v. United States*, 720 F.2d 340, 349 (4th Cir. 1983) (recognizing constitutional claims but vacating grant of writ of habeas corpus).

Generally, so long as the United States has not breached a specific promise to an accused regarding his or her extradition and bases its extradition decisions on diplomatic considerations without regard to such constitutionally impermissible factors as race, color, sex, national origin, religion, or political beliefs, *and in accordance with such other exceptional constitutional limitations as may exist because of particularly atrocious procedures or punishments employed by the foreign jurisdiction, those decisions will not be disturbed.*

Venckiene at 849 (citing *Burt*, 737 F.2d at 1487) (internal citations omitted). When it

discussed blatantly impermissible characteristics sufficient to justify a district court's habeas review of the DOS's surrender decision, *Venckiene's* reference to improper race, gender or religion-based considerations were examples of an otherwise non-exhaustive set of circumstances. *Venckiene's* full quote:

“...we are not inclined to say that a Secretary of State's extradition decision is never reviewable on due process grounds, *let alone grounds of racial or religious bias, for example*. Although the circumstances in which federal courts could and should overturn the highly discretionary decision of the Secretary of State should be rare, *we need not say here that judicial review is never available*. The courts have a duty to protect people and our fundamental principles of justice in the unlikely event that the executive makes an extradition decision based blatantly on impermissible characteristics like race, gender, or religion. We therefore consider *Venckiene's* due process challenge in this appeal, reviewing the Secretary of State's extradition decision to determine the likelihood that *Venckiene's* due process claim would succeed on habeas corpus review.

Venckiene, 929 F.3d at 861 (emphasis added).

After discussing its own circuit's precedent under *Burt*, *Venckiene* explained that “*Burt's* list of reviewable claims does not encompass *Venckiene's* claim that the Secretary of State's decision-making process violated her right to due process of law.” *Venckiene* at 861. In this vein, the Seventh Circuit “[was] persuaded by Fourth and Fifth Circuit cases,” *Peroff v. Hylton*, 563 F.2d 1099 (4th Cir. 1977), and *Escobedo v. United States*, 623 F.2d 1098 (5th Cir. 1980) as “supporting the position that a [due process] challenge like *Venckiene's* is reviewable, at least in principle.” *Id.* In each case, “the Fourth and Fifth Circuits considered habeas corpus petitions raising due process challenges to the Secretary of State's extradition decisions.” *Id.* “In *Peroff*, the Fourth Circuit agreed to consider the petition of an accused arguing that he was denied due process by the Secretary of State's

refusal to conduct a hearing prior to issuing his warrant of extradition. *Id.* (citing *Peroff*, 563 F.2d at 1102).” In *Escobedo*, the Fifth Circuit heard a petitioner's argument that the discretion given to the executive branch under the relevant treaty violated due process because 'no standards are provided to guide the exercise of this discretion,'" *Id.* (citing *Escobedo* at 623 F.2d at 1104-05), “ultimately reject[ing] the due process challenge on the merits.” *Id.* (citing *Escobedo* at 1106). Notably, the Seventh Circuit observed that “[t]he government ha[d] provided no case in which a court declined to hear this type of extradition due process challenge.” *Id.* *Venckiene* elaborated:

Given this lack of contrary authority, we are not inclined to say that a Secretary of State’s extradition decision is never reviewable on due process grounds, *let alone grounds of racial or religious bias, for example*. Although the circumstances in which federal courts could and should overturn the highly discretionary decision of the Secretary of State should be rare, we need not say here that judicial review is never available. The courts have a duty to protect people and our fundamental principles of justice in the unlikely event that the executive makes an extradition decision based blatantly on impermissible characteristics like race, gender, or religion. We therefore consider *Venckiene*'s due process challenge in this appeal, reviewing the Secretary of State’s extradition decision to determine the likelihood that *Venckiene*'s due process claim would succeed on habeas corpus review.

Venckiene at 861 (emphasis added).

The Seventh Circuit weighed the merits of *Venckiene*’s claim that, if extradited to Lithuania “she would be subject to ‘atrocious procedures and punishments,’” to wit “complaints of confined spaces, improper hygiene, poor food, and substandard sanitary condition among others.” *Venckiene* at 862-863, concluding:

In this case, we do not need to decide definitively whether *Munaf* voided the “atrocious procedures” exception in *Burt*. *Venckiene* has not provided us with the type of specific and detailed evidence that a court would need to be able

to assess whether Lithuanian prison conditions generally constitute "atrocious punishment...Without much more specific evidence of atrocious conditions that Venckiene is likely to experience if she is extradited, we are confident that blocking this extradition on such grounds, after the executive has already approved it, would go beyond the scope of our role in the extradition process.

Venckiene, at 863. Mr. Martinez-Guardado does not complain about confined spaces, improper hygiene, poor food, and substandard sanitary conditions. Huyser-Honig has cited numerous and credible examples of the systemic barbaric treatment of prisoners in the Honduran prison system. As noted, the DOS's own annual reports have condemned the Honduran prison system as life threatening due to gross overcrowding, malnutrition lack of medical care and abuse by prison officials, adding that the government's failure to control criminal activity and pervasive gang-related violence contributed significantly to insecurity. App.40-41. ³ As acknowledged by the government, "the *Venckiene* court concluded that 'the circumstances in which federal courts could and should overturn the highly discretionary decision of the Secretary of State should be rare . . .'" Resp. 29 (citing *Venckiene* at 861 (emphasis added). App.54. But "rare" denotes an uncommon quality, not an impossibility. The Petitioner has submitted well-documented authority in support of his arguments against his surrender to the Honduran prison system. The government has presented nothing beyond the bare claim that the DOS considers torture claims under the CAT and that it takes appropriate steps that may include obtaining information or

³ The reports also inform that Honduran human rights organizations reported more than 100 cases of alleged torture or cruel and inhuman treatment of detainees and prisoners by security forces. They also tell of the killing of 68 inmates (61 of them gang members) by security forces during a riot.

commitments from the receiving state to address identified concerns. App.31.

In *Munaf v. Geren*, the United States Supreme Court recognized a district court's jurisdiction to consider habeas relief for two United States that were held in an Iraqi prison to answer for alleged crimes they committed while in Iraq, but that the specific facts of that case - their voluntary incursion into Iraq, their custody status under Iraqi authority and that they were alleged to have committed serious crimes in Iraq - prevented the exercise of habeas authority to provide them relief. The Court explained that "the nature of the relief sought by the habeas petitioners suggests that habeas is not appropriate in these cases," because "Habeas is at its core a remedy for unlawful executive detention," and the petitioners there were not seeking to simply be released from custody (which would inevitably result in their being rearrested by Iraqi authorities), but to be sheltered from prosecution, which did not merit Habeas relief. *Munaf*, at 693-694. In sum, the Supreme Court could not justify applying a habeas remedy where the Iraqi government, a sovereign nation, had "exclusive and absolute" authority to prosecute the petitioners for their crimes. *Munaf* at 694. Concededly, *Munaf* did not involve a habeas challenge to an extradition proceeding. The significance of *Munaf* to the Petitioner's claims lies in the message from its three-judge concurrence, authored by the late Justice David Souter. Justice Souter was clear to point out that it reserved judgment in cases where the government acknowledges that a detainee is likely to be tortured - even if the government fails to acknowledge it - adding that, despite habeas's purpose in securing release, and not protective detention (citation omitted), habeas would not be the only avenue open to an objecting prisoner because "where federally protected rights [are threatened], it has been the rule from the

beginning that court will be alert to adjust their remedies so as to grant the necessary relief." *Munaf* at 706-707 (Justice Souter, concurring) (citing *Bell v. Hood*, 327 U.S. 678 (1946)); App.59. As noted, the government did not contest the expert's opinion that Mr. Guardado is more likely to suffer mistreatment that meets the statutory definition of torture, and furthermore, fails to acknowledge that the DOS has itself published reports that supports the expert's conclusion that the Petitioner will suffer torture, or significantly inhuman treatment if surrendered to Honduras.

In *Escobedo*, cited by the Fifth Circuit in its unpublished order, the Fifth Circuit rejected the merits of Escobedo's due process challenge to his extradition on "humanitarian grounds" that he would "tortured or killed if surrendered to Mexico," determining that "the degree of risk to (Escobedo's) life from extradition is an issue that properly falls within the exclusive purview of the executive branch." *Escobedo* at 1107 (citations omitted). However, Escobedo's evidence in support of this claim was not discussed. Moreover, *Escobedo* was published 45 years ago, well before CAT and FARRAR's codification as federal law, the holdings in *Trinidad y Garcia* and *Venckiene*, and *Munaf's* powerful concurrence. *Escobedo* provides insufficiently developed precedential authority to address the full substance of Mr. Martinez-Guardado's torture claims.

Other courts have also expressed disagreement with the conclusion reached below. In *Aguasvivas v. Pompeo*, the First Circuit intimated that federal courts retain habeas jurisdiction over CAT claims notwithstanding the rule of non-inquiry. See *Aguasvivas v. Pompeo*, 984 F.3d 1047, 1052 n.6 (1st Cir. 2021) ("We have no reason to believe that any principle of non-inquiry implicates federal court jurisdiction—much less Article III

jurisdiction.”).⁴ And, in *Taylor v. McDermott*, a district court in the District of Massachusetts recently construed Section 1252(a)(4) to avoid conflict with the Suspension Clause, as the Ninth Circuit did in *Trinidad y Garcia*. See *Taylor v. McDermott*, 516 F. Supp. 3d 94, 109 (D. Mass. 2021) (“[T]o avoid a construction that violates the Suspension Clause, the court concludes that it has jurisdiction to hear the Taylors’ claims brought under the Convention Against Torture, as implemented by the FARR Act.”). Those decisions underscore the vast scope of disagreement on the questions that Mr. Martinez-Guardado will present in his certiorari petition.

Lastly, to the extent that the Fifth Circuit is relying solely on the rule of non-inquiry to reject Mr. Martinez-Guardado’s request for a stay, this exposes the internal conflict between the judges who participated in the Ninth Circuit’s *Trinidad y Garcia*’s en banc treatment of that question. It is true that the majority in *Trinidad y Garcia* concluded that the DOS’s duty was satisfied by a bare, signed declaration from the Secretary of State that he has complied with his obligations, as sufficient to “vindicate” *Trinidad y Garcia*’s liberty interest. *Trinidad y Garcia* at 957. Echoing Mr. Martinez-Guardado’s argument (App.135-137), dissenting Justice Harry Pregerson, joined by Justice William A. Fletcher, disagreed that a bare claim of compliance with federal anti-torture laws followed by the proper signature “fully vindicated” *Trinidad y Garcia*’s liberty interest, explaining:

Supreme Court precedent counsels otherwise: where we have found habeas jurisdiction, our review consists of “some authority to assess the sufficiency of the Government’s evidence[.]” *Boumediene* [at 786]. Because such a bare bones declaration from “the Secretary or a senior official properly designated

⁴ The First Circuit avoided deciding that issue, however, because it held that the government failed to file the necessary documents to support an extradition request. *Id.* at 1063.

by the Secretary,” *per curiam* at 6402, does not allow us to “assess the sufficiency of the Government’s evidence,” (citing *Boumediene* at 786), I cannot join the majority opinion and therefore dissent.

Trinidad y Garcia, at 1002-1003 (J. Pregerson concurring in part and dissenting in part).

As noted by Justice Pregerson, “[t]he stakes in this case could not be higher:”

[T]he right to be free from official torture is fundamental and universal, a right deserving of the highest stature under international law, a norm of jus cogens. The crack of the whip, the clamp of the thumb screw, the crush of the iron maiden, and, in these more efficient modern times, the shock of the electric cattle prod are forms of torture that the international order will not tolerate. To subject a person to such horrors is to commit one of the most egregious violations of the personal security and dignity of a human being.

Trinidad y Garcia at 1003 (J. Pregerson concurring and dissenting) (citing *Hilao v. Estate of Marcos*, 25 F.3d 1467, 1475 (9th Cir. 1994) (quoting *Siderman de Blake v. Republic of Argentina*, 965 F.2d 699, 717 (9th Cir. 1992))). Mr. Martinez-Guardado submits that the majority's efforts in seeking a balance between a district court’s habeas obligations and the executive's discretion in managing its foreign policy objectives under the rule of non-inquiry, though well-intentioned, deprives a district court of its ability to meaningfully determine the merits of a habeas action, “render[ing] Martinez Guardado’s habeas process an empty and meaningless exercise,” (App.57) and consequently converting the district court's function into a proverbial rubber stamp. We are not herding cattle. Yet, the government asks this court to allow the government to lead the Applicant, a United States Legal Permanent Resident, to the slaughterhouse that is the Honduran prison system, without any meaningful guarantees for his safety. *See Trinidad y Garcia*, at 1005 (J. Pregerson, concurring and dissenting) (“But such a superficial inquiry in the context of a habeas corpus petition abdicates the critical constitutional “duty and authority” of the

judiciary to protect the liberty rights of the detained by "call[ing] the jailer to account." (citing *Boumediene*, 553 U.S. at 745.) The rule of non-inquiry should not be interpreted to prohibit proper fact finding by a district court when resolving a torture-based habeas claim.). In this case, the Court should make inquiries as to what, if anything the DOS has coordinated with Honduras to ensure the Petitioner's safe custody during his trial process, and evidence of the existence of a safe venue, along with proof that the Honduran government has complied with requirements that uphold CAT and FARRAR Act guarantees. Additionally, and unique to our case, it is understood that the United States and Honduras were only able to muster a one-year extension of their extradition treaty—after the Honduran President abruptly cancelled it in 2024, following an American diplomat's unflattering comments about the President's involvement with drug trafficking—to February 7, 2026. What assurances can the DOS give that the treaty will not expire again before the Petitioner's trial process is completed? Would a treaty expiration release the Honduran government of any guarantees to protect the Petitioner from torture? We don't know, and the government does not feel compelled to answer. Common sense dictates the need for proper answers to these pressing questions from the Court.

The circuit split and overall confusion about the state of the law on the issues presented will likely persist without this Court's review.

B. This Case Raises Substantial and Unresolved Questions Concerning the Scope of the Suspension Clause, a Due Process Right to Present Torture Claims under *Munaf's* Concurrence, and the Breadth of the Rule of Non-Inquiry.

The Fifth Circuit's order did not disavow a district court's jurisdiction to entertain Mr. Martinez-Guardado's torture claims, which is consistent with *Venckiene's* own

interpretation of *Escobedo*'s holding on the question of jurisdiction. Without an affirmative statement that jurisdiction exists, however, this is a mere supposition. The Court also failed to discuss the role of the Suspension Clause as a protector of habeas torture claims. The order states that the rule of non-inquiry prevented the district court from granting habeas relief, but it fails to identify this reasoning as the sole authority for this ruling. In fact, the order fails to discuss any of the grounds for relief raised by Mr. Martinez Guardado in his habeas petition and key to a resolution of the rule of non-inquiry question, the disagreement by the judges in *Trinidad y Garcia* regarding how much evidence the DOS is required to provide the habeas court to satisfy concerns about torture. As noted, the Seventh, Ninth and Fifth—as understood by the 7th Cir. in *Venckiene*, and as implied from a cursory reading of the Fifth Circuit's brief order—Circuits all recognize a district court's jurisdiction to entertain a habeas torture challenge. Additionally, *Munaf's* concurrence, which suggests a Due Process right to habeas relief, is also absent from the order.

C. The Questions Presented Are Important and Recurring

The basis for certiorari is strengthened where the conflict involves an important and recurring question of law. *Supreme Court Practice* §§ 4.4(A)-(C). Mr. Martinez-Guardado's case presents such a case. For someone in Mr. Martinez-Guardado's predicament, habeas relief is the only vehicle to avoid torture in a foreign country. *See* 15B Charles Alan Wright et al., *Federal Practice and Procedure* § 3918.3 & n.20 (2d ed. 2025 update) ("A petition for habeas corpus is the only means available to challenge an international extradition order."). The viability of the habeas remedy is caught in a tug of war between the executive's inherent power to manage its foreign relations, and a district

court's constitutional, habeas duty to ensure that extraditees are not tortured when surrendered to a foreign nation. Without a review of these important questions and rules, extraditees will continue to seek judicial recourse without a clear legal roadmap, and the courts will continue to issue rulings that are based on unsettled law.

II. There is a Fair Prospect that the Court Will Reverse

The Court does not need to find that the Fifth Circuit actually erred in order to grant Mr. Martinez-Guardado's requested stay, but "a fair prospect" of reversal by a majority of this Court. *Maryland v. King*, 567 U.S. 1301, 1302 (Roberts, C.J., in chambers) (citation omitted).

The evidence in support of Huyser Honig's opinion that it is more likely than not that Mr. Martinez-Guardado will suffer torture if surrendered to the Honduran prison system is compelling, and undenied and un rebutted by the government. Huyser-Honig's opinion is based not on mere research, but on years of boots on the ground experience in Honduras. Moreover, and as previously noted, Huyser-Honig's findings and opinion are supported by the DOS's own reports condemning the Honduran prison system and cruel and corrupt. The boilerplate response by the DOS in its torture determination response does not constitute an assurance that it is not more likely that not that Mr. Martinez Guardado will be tortured. The government should not be permitted to condemn the Honduran prison system on the one hand, and on the other claim that CAT concerns, without more, have been attended to, without a factually supported response. Ultimately, a district court's jurisdiction to entertain a habeas torture claim is really meaningless if the DOS remains immune to any reasonable inquiry about its efforts at ensuring an extraditee's safety under

the CAT.

III. Mr. Martinez-Guardado Will Suffer Irreparable Harm Absent a Stay of His Extradition/Surrender to Honduras.

The equities overwhelmingly favor a stay of the DOS's decision to surrender Mr. Martinez-Guardado to Honduras. Without a stay, there is a substantial risk that the government will surrender Mr. Martinez-Guardado at any before his appeal to the Fifth Circuit is decided, and his petition for certiorari is even filed. That alone constitutes irreparable harm. See *Manrique v. Kolc*, 65 F.4th 1037, 1041 (9th Cir. 2023) ("Irreparable injury is obvious: Once extradited, Toledo's appeal will be moot."); *Vitkus v. Blinken*, 79 F.4th 352, 367 (4th Cir. 2023) (finding that a petitioner's "extradition during ongoing litigation" would constitute irreparable harm); *Demjanjuk v. Meese*, 784 F.2d 1114, 1118 (D.C. Cir. 1986) (noting that "the imminent extradition of petitioner to Israel may qualify as a threat of irreparable harm"); *Quintanilla v. United States*, 582 Fed. Appx. 412, 414 (5th Cir. 2014) (per curiam) (assuming that "extradition while an appeal of the denial of habeas corpus is pending would constitute irreparable harm"). What is more, Mr. Martinez-Guardado has credibly claimed that he will face torture if extradited to Honduras. App.83-84. That too is irreparable harm. See *Antonio v. Garland*, 38 F.4th 524, 526 (6th Cir. 2022) (stating that the prospect that petitioner "will likely be tortured if he is removed" was "a remarkably strong satisfaction of the irreparable-harm factor"); *Huisha-Huisha v. Mayorkas*, 27 F.4th 718, 733 (D.C. Cir. 2022) (affirming finding that plaintiffs asserting CAT claims "will suffer irreparable harm if they are expelled to places where they will be persecuted or tortured"); *Leiva- Perez v. Holder*, 640 F.3d 962, 970 (9th Cir. 2011) (per

curiam) (“extortion and beatings” that petitioner feared if deported “would certainly constitute irreparable harm”). The harms on the other side of the scale pale in comparison. While the harm to Mr. Martinez-Guardado is his extradition to Honduras and likely torture, the harm to the government is a short delay in carrying out his extradition.

IV. The Court Should Issue an Administrative Stay to Allow It to Fully Consider the Application

The Court should grant an administrative stay to enable full consideration of the merits of this stay application. Mr. Martinez-Guardado filed this application just 6 days after the Fifth Circuit’s unpublished order. Given that timing, and the irreparable harm that Mr. Martinez-Guardado would suffer if extradited, the Court should grant a brief administrative stay of the extradition/surrender, while it considers this application.

CONCLUSION

The Court should grant the motion and stay Mr. Martinez-Guardado’s extradition to Honduras, to prevent his surrender pending the Fifth Circuit's disposition of his appeal of the district court's order denying habeas relief and, if the Fifth Circuit affirms that order, pending the Supreme Court’s disposition of his forthcoming petition for a writ of certiorari. Mr. Martinez-Guardado also respectfully asks the Court to administratively stay his extradition/surrender pending disposition of this Application.

Respectfully submitted,

PHILIP G. GALLAGHER
Federal Public Defender
Southern District of Texas

By /s/ Jorge Aristotelidis
GEORGE W. "JORGE" ARISTOTELIDIS
Assistant Federal Public Defender
Attorney in Charge
Texas State Bar ID No. 00783557
Southern District of Texas No. 1443
Attorneys for Defendant
440 Louisiana, Suite 1350
Houston, Texas 77002
Telephone: (713) 718-4600

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